

TERMS OF SERVICE

Last Updated: [Effective Date]

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1. INTRODUCTION

Welcome to HeartConnect

Welcome to HeartConnect, an online dating platform operated by HeartConnect LLC ("HeartConnect," "we," "us," or "our"). HeartConnect provides a platform for individuals to connect with potential romantic partners through our website and mobile application (collectively, the "Service").

We've created these Terms of Service ("Terms") to be straightforward and clear about the rules that govern your use of our Service. These Terms create a legally binding agreement between you and HeartConnect, so please read them carefully.

Acceptance of Terms

By accessing or using the HeartConnect Service, you acknowledge that you have read, understood, and agree to be bound by these Terms. If you do not agree to these Terms, you may not access or use the Service.

You must be at least 18 years old to use HeartConnect. By using the Service, you represent and warrant that you are at least 18 years old and have the legal capacity to enter into these Terms.

Definitions

To help you understand these Terms, here are some key definitions:

- **Account:** Your personal registration with HeartConnect, including your profile information and login credentials.
- **Content:** Any information, text, graphics, photos, videos, or other materials that users upload, post, or share on the Service.
- **Free Member:** A user who has registered for the basic, non-paid version of the Service.
- **Premium Member:** A user who has subscribed to the paid version of the Service with additional features.
- **Profile:** The information, photos, and other content that you provide to create your presence on HeartConnect.
- **Service:** The HeartConnect platform, including the website, mobile application, and all features, functionality, and content available through them.
- **Subscription:** A recurring payment plan that provides access to Premium features.
- **User:** Any individual who accesses or uses the Service, whether as a Free Member or Premium Member.

2. ELIGIBILITY AND ACCOUNT

Age Requirements

HeartConnect is strictly for individuals who are 18 years of age or older. By creating an account, you represent and warrant that you are at least 18 years old. HeartConnect does not knowingly collect or solicit information from anyone under the age of 18. If we learn that we have collected personal information from someone under 18, we will delete that information immediately.

Account Creation

To use HeartConnect, you must create an account. When creating your account, you agree to provide accurate, current, and complete information. You are responsible for maintaining the confidentiality of your account credentials and for all activities that occur under your account.

You may not: - Create more than one account - Create an account for someone other than yourself - Transfer your account to another person - Use a username that is offensive, vulgar, or infringes on someone else's rights

HeartConnect reserves the right to refuse registration of, or cancel, any username that violates these Terms.

Account Security

You are solely responsible for maintaining the security of your account and password. HeartConnect cannot and will not be liable for any loss or damage resulting from your failure to comply with this security obligation. You should notify HeartConnect immediately if you suspect any unauthorized access to or use of your account.

Account Termination

HeartConnect reserves the right to suspend or terminate your account at any time for any reason, including but not limited to: - Violation of these Terms - Conduct that risks harm to other users - Conduct that risks harm to HeartConnect - Suspected fraudulent, abusive, or illegal activity - Extended periods of inactivity

You may terminate your account at any time by following the instructions in the "Account Settings" section of the Service. Upon termination, your profile will no longer be visible to other users, but some information may remain in our system for record-keeping purposes or as required by law.

3. USER CONDUCT

Acceptable Use Guidelines

As a HeartConnect user, you agree to use the Service in a manner consistent with its purpose as a dating platform. You agree to use the Service in compliance with all applicable laws and regulations and in accordance with these Terms.

HeartConnect is designed to help people form genuine connections. We expect all users to treat others with respect and dignity. Your interactions should be honest, considerate, and appropriate.

Prohibited Activities

You agree not to engage in any of the following prohibited activities:

- Using the Service for any illegal purpose or in violation of any local, state, national, or international law
- Harassing, threatening, intimidating, or stalking any other user
- Impersonating another person or entity, or falsely stating or misrepresenting your affiliation with a person or entity
- Creating multiple accounts or creating an account on behalf of someone else
- Using the Service to send unsolicited communications, promotions, advertisements, or spam
- Collecting or harvesting any information about other users without their consent
- Attempting to access another user's account without permission
- Interfering with or disrupting the Service or servers or networks connected to the Service
- Using any robot, spider, crawler, scraper, or other automated means to access the Service
- Circumventing or modifying any security technology or software that is part of the Service
- Posting content that promotes racism, bigotry, hatred, or physical harm against any group or individual
- Soliciting money from other users or engaging in commercial activities without our prior written consent

Profile Authenticity

You agree that the information you provide to HeartConnect, including information provided for your profile, is accurate, current, and complete. You agree to maintain and update this information to keep it accurate, current, and complete.

You may not: - Provide false or misleading information about yourself - Use photos that are not of you or that do not accurately represent your current appearance - Claim characteristics, qualities, or accomplishments that are not truthful - Misrepresent your intentions for using the Service

HeartConnect reserves the right to verify the authenticity of user profiles and to remove profiles that we determine, in our sole discretion, to be inauthentic or misleading.

Content Guidelines

All content you post on HeartConnect must comply with these Terms and our content guidelines. You may not post content that:

- Is obscene, pornographic, or sexually explicit
- Depicts violence or is excessively violent
- Promotes illegal activities
- Infringes on the intellectual property rights of others
- Violates the privacy or publicity rights of others
- Contains hate speech or discriminatory content
- Is harmful to minors in any way
- Is harassing, abusive, or threatening
- Contains viruses, malware, or other harmful code

HeartConnect reserves the right to remove any content that violates these guidelines or that we find objectionable for any reason, in our sole discretion.

Reporting Mechanisms

If you encounter content or behavior that violates these Terms, please report it immediately using the reporting features available within the Service. HeartConnect takes reports of misconduct seriously and will investigate and take appropriate action, which may include removing content, suspending or terminating accounts, and/or reporting to law enforcement authorities.

4. USER CONTENT

User-Generated Content Ownership

You retain ownership of any content that you post, upload, or otherwise make available on HeartConnect ("User Content"), including your profile information, messages, photos, and other materials.

However, by posting User Content on HeartConnect, you grant us certain rights to that content, as described below.

License to HeartConnect

By posting User Content on HeartConnect, you grant HeartConnect a non-exclusive, transferable, sub-licensable, royalty-free, worldwide license to host, use, distribute, modify, run, copy, publicly perform or display, translate, and create derivative works of

your User Content for the purposes of operating, developing, providing, and promoting the Service.

This license remains in effect even if you stop using our Service, except for content that you delete or that is deleted by HeartConnect. For content that is deleted, the license will terminate within a commercially reasonable time after the content is deleted, except where: - The content has been shared with others who have not deleted it - We are required to retain the content by law - We need to retain the content for legitimate business purposes, such as fraud prevention or legal compliance

Content Removal Rights

HeartConnect reserves the right to remove any User Content for any reason, including but not limited to: - Violation of these Terms - Violation of our content guidelines - Violation of any applicable law or regulation - Receipt of a valid complaint from another user - Receipt of a valid legal request or requirement

We may remove such content without prior notice. HeartConnect has no obligation to store, maintain, or provide you with a copy of any User Content that you or other users provide when using the Service.

Intellectual Property Protection

HeartConnect respects the intellectual property rights of others and expects users to do the same. You may not upload, post, or otherwise make available on the Service any material protected by copyright, trademark, or other proprietary rights without the express permission of the owner of such rights.

If you believe that your work has been copied in a way that constitutes copyright infringement, please provide HeartConnect with the following information: - An electronic or physical signature of the person authorized to act on behalf of the owner of the copyright interest - A description of the copyrighted work that you claim has been infringed - A description of where the material that you claim is infringing is located on the Service - Your address, telephone number, and email address - A statement by you that you have a good faith belief that the disputed use is not authorized by the copyright owner, its agent, or the law - A statement by you, made under penalty of perjury, that the above information in your notice is accurate and that you are the copyright owner or authorized to act on the copyright owner's behalf

HeartConnect will promptly investigate and take appropriate action in response to valid copyright infringement notices.

5. PRIVACY AND DATA HANDLING

Summary of Data Collection

HeartConnect collects various types of information from users to provide and improve our Service. This includes:

- Information you provide when creating your account and profile (such as name, email address, date of birth, gender, sexual orientation, photos, and personal interests)
- Information about your interactions with the Service and with other users
- Technical information about your device and connection (such as IP address, browser type, and operating system)
- Location information, with your consent
- Information from third parties, such as when you connect your social media accounts

This section provides a summary of our data practices. For complete information about how we collect, use, and share your information, please refer to our Privacy Policy.

Purpose of Data Usage

HeartConnect uses the information we collect for various purposes, including:

- Providing, maintaining, and improving the Service
- Creating and managing your account
- Processing your transactions
- Matching you with potential romantic partners
- Communicating with you about the Service
- Ensuring the safety and security of the Service
- Complying with legal obligations

We do not sell your personal information to third parties. However, we may share your information with third-party service providers who help us operate our business and provide the Service.

Data Protection Measures

HeartConnect implements reasonable security measures to protect your personal information from unauthorized access, disclosure, alteration, and destruction. However, no method of transmission over the Internet or electronic storage is 100% secure, and we cannot guarantee absolute security.

We retain your information for as long as your account is active or as needed to provide you with the Service. We will retain and use your information as necessary to comply with our legal obligations, resolve disputes, and enforce our agreements.

User Privacy Rights

Depending on your location, you may have certain rights regarding your personal information, including:

- The right to access the personal information we hold about you
- The right to request correction of inaccurate personal information
- The right to request deletion of your personal information
- The right to object to or restrict certain processing of your personal information
- The right to data portability

If you are a resident of the European Union, you have these rights under the General Data Protection Regulation (GDPR). If you are a California resident, you have certain rights under the California Consumer Privacy Act (CCPA).

To exercise any of these rights, please contact us using the information provided in the "Contact Information" section.

Links to Full Privacy Policy

This section provides only a summary of our data handling practices. For complete information about how we collect, use, share, and protect your personal information, please review our full Privacy Policy, which is incorporated into these Terms by reference.

6. PREMIUM SUBSCRIPTION

Free vs. Premium Features

HeartConnect offers both free and premium services. Free Members have access to basic features, including creating a profile, browsing other profiles, and limited messaging capabilities. Premium Members enjoy additional features designed to enhance their experience and increase their chances of finding meaningful connections.

Premium features may include, but are not limited to: - Unlimited messaging with other users - Advanced search and filtering options - Ability to see who has viewed or liked your profile - Priority placement in search results - Ad-free experience - Additional profile customization options

HeartConnect reserves the right to modify, add, or remove features from either the free or premium service at any time.

Subscription Pricing and Billing Cycles

Premium subscription prices are displayed within the Service before purchase. HeartConnect offers various subscription durations (e.g., monthly, quarterly, or annual). The price and duration of each subscription option will be clearly disclosed before you complete your purchase.

All subscription fees are payable in advance and in the currency specified at the time of purchase. Prices are subject to change, but any price changes will apply only to subscription periods that begin after the price change is announced.

Auto-Renewal Terms

IMPORTANT: ALL PREMIUM SUBSCRIPTIONS AUTOMATICALLY RENEW UNTIL CANCELLED BY YOU.

By purchasing a Premium subscription, you authorize HeartConnect to charge your payment method on a recurring basis for the subscription plan you selected. Your subscription will automatically renew at the end of each subscription period unless you cancel it before the renewal date.

For example, if you purchase a monthly subscription, your payment method will be charged each month on the anniversary of your initial purchase date until you cancel.

Cancellation Procedures

You may cancel your Premium subscription at any time through your account settings or by contacting customer support. Upon cancellation, your subscription will remain active until the end of your current billing period, at which point it will not renew. No refunds or credits will be provided for partial subscription periods.

To avoid being charged for the next subscription period, you must cancel your subscription at least 24 hours before the end of your current subscription period.

Refund Policy

Generally, subscription payments are non-refundable. However, in certain circumstances, such as technical issues that significantly impair the Service, HeartConnect may, at its sole discretion, issue partial or full refunds.

If you believe you are entitled to a refund, please contact customer support with details of your situation. Each request will be evaluated on a case-by-case basis.

Payment Processing

HeartConnect uses third-party payment processors to handle subscription payments. By providing your payment information, you authorize HeartConnect and its payment processors to charge the applicable subscription fees to your payment method.

You agree to provide current, complete, and accurate purchase and account information for all purchases made through the Service. You further agree to promptly update your account and payment information, including email address, payment method, and payment card expiration date, so that we can complete your transactions and contact you as needed.

7. DISCLAIMERS

No Background Checks

HEARTCONNECT DOES NOT CONDUCT CRIMINAL BACKGROUND CHECKS OR SCREENINGS ON ITS USERS.

We do not verify the information provided by users, including their identity, age, or any other information. While we strive to maintain a safe platform, we cannot guarantee the conduct of any user. You are solely responsible for your interactions with other users.

HeartConnect reserves the right to conduct any criminal and background screenings on its users at any time using available public records, but has no obligation to do so.

No Guarantee of Matches

HeartConnect provides a platform for individuals to connect, but we do not guarantee that you will find a romantic partner or any specific outcome from using our Service. The quality and compatibility of potential matches will depend on many factors outside our control.

Any matching algorithm or feature we provide is offered on an "as is" basis, and we make no representations or warranties about the accuracy, reliability, or effectiveness of such features.

User Interaction Responsibility

YOU ARE SOLELY RESPONSIBLE FOR YOUR INTERACTIONS WITH OTHER USERS.

You understand that HeartConnect does not conduct criminal background checks on its members or otherwise inquire into the background of its members. HeartConnect makes no representations or warranties as to the conduct or compatibility of members.

HeartConnect is not responsible for the conduct of any user on or off the Service. You agree to take reasonable precautions in all interactions with other users, particularly if you decide to meet in person. You should not provide your financial information to other users and should consider conducting meetings in public places.

Service Availability

HeartConnect provides the Service on an "as is" and "as available" basis. We do not guarantee that the Service will be uninterrupted, timely, secure, or error-free. We reserve the right to modify, suspend, or discontinue the Service, either temporarily or permanently, with or without notice.

HeartConnect is not liable for any modification, suspension, or discontinuation of the Service, or for any loss of data or functionality resulting therefrom.

Third-Party Links and Services

The Service may contain links to third-party websites or services that are not owned or controlled by HeartConnect. HeartConnect has no control over, and assumes no responsibility for, the content, privacy policies, or practices of any third-party websites or services.

You acknowledge and agree that HeartConnect shall not be responsible or liable, directly or indirectly, for any damage or loss caused or alleged to be caused by or in connection with the use of or reliance on any such content, goods, or services available on or through any such websites or services.

8. LIMITATION OF LIABILITY

What We're Not Responsible For

To the maximum extent allowed by law, HeartConnect is not responsible for:

- Any indirect or consequential damages that happen from using our service
- Personal injuries or property damage related to your use of the service
- Unauthorized access to our servers or your personal information
- Service interruptions or technical issues
- Viruses or harmful code that might be transmitted through the service

- Errors or omissions in any content
- Any interactions between you and other users, whether online or offline

These limitations apply regardless of the legal theory (contract, negligence, etc.), even if we've been told about the possibility of such damages.

In all cases, our total liability to you will not exceed the amount you've paid to HeartConnect in the last six months, or \$100, whichever is greater.

Your Responsibilities to Us

You agree to protect HeartConnect from any claims, damages, or expenses (including reasonable attorney fees) that arise from: - Your violation of these Terms - Content you post on the service - How you use the service - Your interactions with other users - Your violation of someone else's rights

Disputes with Other Users

If you have a dispute with another user, you release HeartConnect from all related claims and damages. This means you can't involve us in your personal disputes with other users.

California residents: You waive California Civil Code § 1542, which means you're giving up rights you might not know about yet.

Risks You Accept

By using HeartConnect, you understand and accept these risks: - You might encounter people who could cause physical or emotional harm - You might meet people who are offensive or objectionable - Information you share might be misused by others - The service might not meet your expectations

9. DISPUTE RESOLUTION

How We'll Resolve Disagreements

Instead of going to court, we'll use binding arbitration to resolve disputes between us. This means a neutral third party will decide the outcome, not a judge or jury.

However, you can still seek help from a court for intellectual property issues (like copyright infringement), and either of us can go to small claims court for eligible disputes.

The arbitration will: - Be conducted by a single arbitrator - Take place in your county or another location we both agree on - Be in English - Follow the laws of the state where HeartConnect is headquartered - Be administered by the American Arbitration Association (AAA)

Before Starting Arbitration

If you have a concern, please contact us first at [email address]. Describe your issue and what you're seeking. We'll try to resolve it directly with you within 60 days.

If we can't resolve it together, either of us can then start the arbitration process.

Individual Claims Only

You and HeartConnect agree that any disputes will be handled individually. This means:

- No class actions - No group arbitrations - No representative proceedings

The arbitrator can only decide claims between you and HeartConnect, not claims involving other users.

Your Right to Opt Out

If you don't want to agree to arbitration, you can opt out by sending us a written notice within 30 days of accepting these Terms. Send your opt-out notice to [email address] or [mailing address].

If you opt out, HeartConnect won't require arbitration for disputes with you.

10. GENERAL PROVISIONS

Governing Law

These Terms and your use of the Service shall be governed by and construed in accordance with the laws of the United States and the state where HeartConnect maintains its principal place of business, without giving effect to any choice or conflict of law provision or rule.

EU User Provisions

If you are a user accessing the Service from the European Union, you may have certain additional rights under applicable law. Nothing in these Terms is intended to limit those rights, if applicable.

For EU users, these Terms do not exclude or limit our responsibility for: - Death or personal injury caused by our negligence - Fraud or fraudulent misrepresentation - Any liability that cannot be excluded or limited under applicable law

Modifications to Terms

HeartConnect reserves the right to modify these Terms at any time. If we make material changes to these Terms, we will notify you by email or by posting a notice on our website prior to the changes becoming effective.

Your continued use of the Service after the effective date of any changes constitutes your acceptance of the modified Terms. If you do not agree to the modified Terms, you must stop using the Service.

Severability Clause

If any provision of these Terms is held to be invalid, illegal, or unenforceable for any reason, such provision shall be eliminated or limited to the minimum extent necessary, and the remaining provisions of the Terms will continue in full force and effect.

Entire Agreement

These Terms, together with the Privacy Policy and any other agreements expressly incorporated by reference herein, constitute the entire agreement between you and HeartConnect concerning the Service and supersede all prior or contemporaneous communications, whether electronic, oral, or written, between you and HeartConnect regarding the Service.

Assignment

You may not assign or transfer these Terms, by operation of law or otherwise, without HeartConnect's prior written consent. Any attempt by you to assign or transfer these Terms without such consent will be null and void.

HeartConnect may assign or transfer these Terms, at its sole discretion, without restriction. Subject to the foregoing, these Terms will bind and inure to the benefit of the parties, their successors, and permitted assigns.

Contact Information

If you have any questions about these Terms, please contact us at:

HeartConnect LLC [Address] Email: [email address] Phone: [phone number]

11. ACKNOWLEDGMENT

User Acknowledgment of Terms

By using the HeartConnect Service, you acknowledge that you have read, understood, and agree to be bound by these Terms of Service. You further acknowledge that:

- You are at least 18 years of age
- You have the legal capacity to enter into these Terms
- You understand that these Terms constitute a legally binding agreement between you and HeartConnect
- You accept all of the conditions, obligations, affirmations, representations, and warranties contained in these Terms
- You agree to comply with all applicable laws and regulations in connection with your use of the Service

If you do not agree with any part of these Terms, you must not access or use the HeartConnect Service.

Effective Date

These Terms of Service are effective as of [Effective Date].

HeartConnect may update these Terms from time to time. The most current version will always be posted on our website, with the effective date clearly indicated.

Thank you for using HeartConnect. We wish you success in your journey to find meaningful connections.